Data Processing Agreement

Nimbus Labs Ltd. and the Customer | Version 2.1, effective 1 March 2026

1. Parties and Scope

This Data Processing Agreement (the "DPA") is entered into between Nimbus Labs Ltd., a company registered in Ireland with its registered office in Dublin ("Nimbus" or the "Processor"), and the customer identified in the order form (the "Customer" or the "Controller"). It forms part of the Nimbus Analytics Terms of Service.

This DPA applies to all personal data that Nimbus processes on behalf of the Customer while providing the Nimbus Analytics platform. Version 2.1 of this DPA takes effect on 1 March 2026 and replaces all earlier versions.

2. Definitions

"Personal Data", "Processing", "Controller" and "Processor" have the meanings given in the EU General Data Protection Regulation (GDPR). "Sub-processor" means any third party engaged by Nimbus that processes Personal Data on behalf of the Customer. "Security Incident" means a breach of security leading to the accidental or unlawful destruction, loss, alteration or unauthorised disclosure of, or access to, Personal Data.

3. Processing Instructions

Nimbus processes Personal Data only on the documented instructions of the Customer, including the instructions given through the configuration of the platform. If Nimbus believes an instruction infringes data protection law, it will inform the Customer within 5 business days and may suspend the affected processing until the instruction is confirmed or changed.

4. Confidentiality and Personnel

Every Nimbus employee and contractor with access to Personal Data is bound by a written confidentiality obligation that continues for 5 years after their engagement ends. Staff with production access complete security and privacy training when they join and every 12 months after that, and pass a background check before access is granted.

5. Security Measures

Nimbus maintains the technical and organisational measures described in Annex A. These include encryption of Personal Data at rest with AES-256 and in transit with TLS 1.2 or higher, multi-factor authentication for all staff accounts, and a review of production access rights every quarter. Nimbus may update these measures as long as the overall level of protection is not reduced.

6. Sub-processors

The Customer gives general authorisation for Nimbus to engage Sub-processors. The Sub-processors approved on the effective date are listed in the table below.

Sub-processor	Purpose	Location
Amazon Web Services	Cloud hosting and storage	EU, US, APAC

Sub-processor	Purpose	Location
Stripe	Payment processing	United States
Zendesk	Customer support tickets	European Union
Twilio SendGrid	Transactional email	United States

Nimbus will notify the Customer of any new Sub-processor at least 30 days before it begins processing Personal Data. The Customer may object on reasonable data protection grounds within 14 days of the notice. If the parties cannot resolve the objection, the Customer may terminate the affected services and receive a pro-rata refund of prepaid fees for the remaining term.

7. Security Incidents

Nimbus will notify the Customer without undue delay, and in any event within 48 hours, after becoming aware of a Security Incident affecting the Customer's Personal Data. The notice will describe the nature of the incident, the categories and approximate number of data subjects concerned, the likely consequences, and the measures taken or proposed. Nimbus will provide updates at least every 24 hours until the incident is contained.

8. Data Subject Requests

If Nimbus receives a request from a data subject relating to the Customer's Personal Data, it will forward the request to the Customer within 3 business days and will not respond to it directly unless instructed to. Nimbus will help the Customer answer such requests, and will complete any assistance the Customer asks for within 10 business days.

9. Audits

Nimbus will make its most recent SOC 2 Type II report and ISO/IEC 27001 certificate available to the Customer on request. In addition, the Customer may audit Nimbus's compliance with this DPA once every 12 months, with at least 30 days' written notice. Audits take place during business hours, at the Customer's expense, and must not disrupt Nimbus's operations. An additional audit is permitted after a Security Incident.

10. International Transfers

Personal Data stays in the data region the Customer selects. Where Personal Data is transferred outside the European Economic Area, including to a Sub-processor, the transfer is governed by the European Commission's Standard Contractual Clauses (Module 2, controller to processor), which are incorporated into this DPA by reference.

11. Return and Deletion of Data

When the agreement ends, the Customer may export its Personal Data through the platform for 30 days. After that export window closes, Nimbus deletes the Customer's Personal Data from its production systems within a further 30 days, and from backups within 35 days of that, unless the law requires Nimbus to keep it. Nimbus will confirm the deletion in writing on request.

12. Liability and Governing Law

Each party's total liability under this DPA is limited to the fees the Customer paid for the Nimbus

Analytics platform in the 12 months before the event that gave rise to the claim. This DPA is governed by the laws of Ireland, and the courts of Dublin have exclusive jurisdiction over any dispute arising from it.

Annex A - Technical and Organisational Measures

- Access control: single sign-on for staff, multi-factor authentication on every account, least-privilege roles, and quarterly access reviews.

- Encryption: AES-256 at rest; TLS 1.2 or higher in transit; keys rotated every 90 days.

- Availability: backups every 6 hours, kept for 35 days, replicated to a second availability zone in the same region.

- Monitoring: centralised audit logs kept for 1 year and reviewed by the security team.

- Vulnerability management: critical vulnerabilities patched within 7 days; annual penetration test by an independent firm.